MEMORANDUM OF AGREEMENT

ON

"Impact Assessment of the Project on Development of Sustainable Breeder Philippine Mallard Duck (PMD) Production System"

KNOW ALL MEN BY THESE PRESENTS:

This agreement entered into by and among:

The **DEPARTMENT OF SCIENCE AND TECHNOLOGY - PHILIPPINE COUNCIL FOR AGRICULTURE, AQUATIC AND NATURAL RESOURCES RESEARCH AND DEVELOPMENT** hereinafter referred to as **"DOST-PCAARRD,"** with principal office at Los Baños, Laguna and represented by its Executive Director, **DR. REYNALDO V. EBORA;**

-and-

The **UNIVERSITY OF SOUTHEASTERN PHILIPPINES**, a state university created by virtue of Batas Pambansa Blg 12, and hereinafter referred to as "**USeP**," with principal office at Bo. Obrero, Davao City and represented herein by its President, **DR. LOURDES C. GENERALAO;**

-and-

The **PARTIDO STATE UNIVERSITY**, and hereinafter referred to as **"ParSU,"** with office address at Goa, Camarines Sur, represented herein by its President, **DR. RAUL G. BRADECINA;**

WHEREAS, the abovementioned project was approved by the PCAARRD Directors' Council on August 1, 2023 at the DOST-PCAARRD, Los Baños, Laguna.

NOW THEREFORE, for and in consideration of the foregoing premises, the PARTIES hereby agree to the following terms and conditions:

WITNESSETH:

I. Purpose

This agreement seeks to implement the project titled, "Impact Assessment of the Project on Development of Sustainable Breeder Philippine Mallard Duck (PMD) Production System."

II. Objectives

General Objective: The overall objective of the study is to assess the impact of the Development of Sustainable Breeder Philippine Mallard Duck (PMD)Production System Project.

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Project Leader
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Accountant II
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Specifically, it aims to:

1. describe the processes and dynamics involved in the conceptualization, formulation, and implementation of the PMD project;
2. describe the different component of the PMD project in terms of inputs, activities, and outputs;
3. identify the techno-transfer modalities and track the status and/or subsequent use of the outputs produced;
4. identify the adoption pathways (e.g., commercialization, capacity building, communication, regulation) and track related projects and collaborators that facilitated the adoption of outputs;
5. determine the economic (change in productivity, change in income), socio-institutional (e.g., social cohesions, value chain enhancement), and environmental impacts of the PMD project at the micro (i.e., farm), meso (i.e., consumer), and macro (i.e., industry) levels;
6. document lessons learned (hindering and facilitating factors); and
7. provide policy recommendations that can improve the design and implementation of future R&D and technology transfer programs for the development of the PMD industry in the Philippines.

III. Expected Outputs

The expected outputs of the project are the following:

Publication:
- At least one (1) draft journal article

Product:
- Information on the project's impact on stakeholders particularly duck farmers, women, and youth

Places and Partnerships:
- Linkage and collaboration with stakeholders in 10 implementation sites (Zaragosa, Nueva Ecija; Munoz, Nueva Ecija; Candelaria, Quezon; Tiaong, Quezon; Calamba, Laguna; Iloilo City; Zamboanga City; Trento, Agusan del Sur; Compostella, Davao de Oro; and Davao City)

Policy:
- Identification of areas that requires further policy intervention, policy recommendations on sustainability (e.g. institutionalization of the program introduced practices that are proven to be effective), policy recommendation to complement and support changes in outcomes caused by the program.

IV. Duration of the Project

The project shall be implemented for 18 months covering the period October 1, 2023 to March 31, 2025. The project shall commence immediately or within two (2) months after the release of funds. In case there is a change in actual date of implementation, it shall be requested from DOST-PCAARRD by USeP and ParSU.

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V. Rights and Obligations of the Parties

DOST - PCAARRD shall:

a. Provide financial support for the project with a total grant of **Four Million Nine Hundred Ninety-Seven Thousand Seventy-Eight Pesos and 52/100 Centavos (PhP4,997,078.52),** with the following breakdown:

Agency	Budget (PhP)		
	Y1	Y2	Total
USeP	2,147,683.50	913,760.77	3,061,444.27
ParSU	1,385,352.50	550,281.75	1,935,634.25
Total	**3,533,036.00**	**1,464,042.52**	**4,997,078.52**

For its Y1 implementation, the total amount of **Three Million Five Hundred Thirty-Three Thousand Thirty-Six Pesos (PhP3,533,036.00)** shall be remitted to USeP and ParSU, the line-item budget of which is attached as ***Annex A*** and made an integral part hereof.

Such grant shall be for the Year 1 of the project to be led by USeP and ParSU and to be expended as allocated in the project's approved line-item budget and released subject to the terms and conditions specified in the "Revised Guidelines for the Grants-In-Aid Program of the Department of Science and Technology and Its Agencies (DOST A.O. No. 11, series of 2020), effective September 2, 2020 and PCAARRD Supplemental Provisions (PCAARRD AO No. 198-B, series of 2019), effective August 2, 2019 (see **Annex B**), not contradicting with the current guidelines, shall govern the implementation of the project.

Release of succeeding project funds shall be subject to review, evaluation and approval by DOST-PCAARRD approving bodies duly supported by the required financial and technical reports.

b. Monitor and evaluate the implementation of the project in accordance with the objectives and the workplan;

c. Conduct periodic field evaluation of the project to identify problems, solutions and remedial actions to avoid delays in implementation;

d. Provide adequate coordinative and efficient administrative support and management system necessary for the smooth implementation of the project;

e. Ensure that specific work plans agreed by all parties are adhered to including budgets necessary to implement such plans;

f. Review periodic financial reports submitted by the implementing agency; and

g. Appraise technical reports (semi-annual, annual, publishable report and terminal).

The implementing agencies, USeP and ParSU, through their respective Presidents, bind themselves to implement the project under an assigned Project Leader from USeP and a Project Staff from ParSU, in accordance with the approved project proposal (made part hereof as **Annex C**) and shall be strictly implemented following the project's work and financial plan.

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Among the responsibilities of the implementing agencies as provided for in these guidelines are as follows:

USeP shall:

1. Take the lead in the implementation of project activities and coordinate with other collaborating agencies.

2. Submit an integrated terminal technical report and ensure that administrative and financial reports are duly submitted by all collaborating agencies

USeP and ParSU shall:

1. Exert all efforts (such as providing facilities and technical personnel with the required expertise) to attain the objectives stated in the proposal; and

2. Take the lead in the implementation of project activities in the assigned areas and coordinate with other collaborating agencies;

3. Hire the required project personnel as indicated in the approved proposal in accordance with the existing hiring policies of the agency and the approved line-item budget; request approval from DOST-PCAARRD of any changes in the position/designation of the project personnel to be hired; and submit list of personnel engaged in the project following DOST Form 11.

4. Submit the following technical accomplishment reports duly endorsed by the Agency Head to DOST-PCAARRD:
   4.1 An acceptable semi-annual report using DOST Form 6 in two (2) hard copies and one (1) electronic copy within a month after the end of the project semester.

   4.2. An acceptable annual technical accomplishment report using DOST Form 7 in two (2) hard copies and one (1) electronic copy within two (2) months after the end of a project year. In case of a program, a consolidated annual program report shall be submitted in addition to the individual project reports.

   4.3. A quality terminal technical report following DOST Form 15 in three (3) hardcopies and one (1) electronic copy within three (3) months after project completion which shall be accompanied by two (2) hardcopies and one (1) electronic copy of publishable technical report. The publication of such paper in any existing scientific or professional journal should meet the standards set by said journal.

5. Disburse funds in accordance with the approved Line-Item Budget (LIB), subject to existing government accounting and auditing procedures, and make necessary reprogramming of funds for not more than three (3) times in each implementation year, following these rules:

   5.1 Approve, through Implementing Agency Head or his authorized representative, any reprogramming/transfer of funds of existing expense items (other than those enumerated in 5.2) budget as originally approved by the DOST-PCAARRD to augment direct and indirect cost under PS, and MOOE. A copy of approval shall be provided to DOST-PCAARRD within two (2) weeks for

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documentation/concurrence of the monitoring division, otherwise the approved reprogramming shall be null and void;

5.2. Exceptions to the provisions of 5.1 are the following:
   5.2.1 Budget for the Foreign Travel and Training
   5.2.2 Creation of new expense item, including increase/decrease of numbers of items (e.g., equipment, personnel) originally approved in the LIB and upgrading/downgrading of positions from the originally approved PS
   5.2.3 Increase in indirect cost budget exceeding the 7.5% ceiling for indirect cost

6. Submit at least three (3) copies of the following financial reports to DOST-PCAARRD:
   6.1. Semi-annual financial report using DOST Form 8, certified correct by the agency accountant and approved by the agency head within a month after each semester, supported by Report of Disbursement (ROD).
   6.2. Annual financial report using DOST Form 8 certified correct by the Agency Accountant and approved by the agency head within two (2) months after end of each implementation year.
   6.3. Terminal audited financial report (TFR) duly accepted by the COA, using DOST Form 16 within three (3) months after project completion. The reported unexpended balance shall be refunded back to DOST-PCAARRD.

   Financial reports are accompanied by DOST Forms 9, 11, 12, and 13, whenever applicable.

7. Be accountable for equipment purchased for the project. Only equipment listed in the approved proposal shall be purchased by the agency following the government Procurement Reform Act. DOST-PCAARRD remains to be the owner of all equipment purchased out of its grant and shall have the right to transfer/assign/donate such to anyone after the project completion.

   Enter all equipment purchased in the institution's books on inventory of equipment. Submit report on equipment purchased using DOST Form 12 with the corresponding Property Acknowledgement Receipts (PARs).

8. Make available to authorized officials of DOST-PCAARRD and the Commission on Audit during office hours, the records of project operations and books of accounts for inspection whenever necessary.

9. Present the project results in agency in-house reviews/program review and/or at least in one seminar or scientific meeting for the purpose of disseminating the information and technology generated from the project; without prejudice to the provision of Section VI hereof.

Project Leader, shall:

a. Coordinate with Project Staff to ensure that goals of the project are attained;
b. Facilitate and monitor the implementation of project activities;
c. Coordinate, facilitate and monitor the preparation of the project's accomplishments and financial reports;
d. Consolidate project's accomplishment reports and prepare syntheses of accomplishment reports; and

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e. Maintain close communication and coordination with DOST-PCAARRD.

Project Staff, shall:

a. Coordinate with Project Leader to ensure that goals of the project are attained;
b. Facilitate and monitor the implementation of project activities;
c. Facilitate the preparation and submission of the project's accomplishments and financial reports which shall be packaged by the Project Leader as a project output; and
d. Maintain close communication and coordination with DOST-PCAARRD.

VI. Ownership and Utilization of Information, Technologies, Inventions and Improvements

The Implementing Agencies and the researchers recognize that results of the project and the rights to publication, except those that relate to intellectual property concerns, belong jointly to the researchers and implementing agencies. Ownership of intellectual property and intellectual property rights shall be governed by but not limited to, Chapter II, Rule 5 and Rule 6 of the Implementing Rules and Regulations of Republic Act (R.A.) 10055.

Full acknowledgments shall accordingly be given to DOST-PCAARRD in case the research results are published or presented in various forums, seminars, meetings. Such presentation should not prejudice the proprietary/confidential nature of the information as heretofore mentioned for purposes of intellectual property protection.

Subject to the limitations recognized by law, particularly those that relate to intellectual property, the implementing agencies reserve the right to use all data and findings by virtue of and pursuant to this agreement for the enhancement of its academic and research programs.

VII. Discontinuance of Assistance

DOST-PCAARRD reserves the right to:

a. Discontinue any program/project of its assistance at any time with prior consultation with Implementing Agency for violation of this agreement or when it is determined that the results obtained or are reasonably expected to be obtained do not justify further activity for reasons attributable to the willful act of the project leader and/or implementing team; suspend the program/project and the disbursement of funds for violation of any part of this agreement;

b. Terminate any project when funds are not available from the national government.

Discontinuance of assistance, suspension or termination of this agreement shall be done by DOST-PCAARRD upon prior consultation with USeP and ParSU. In case of suspension, upon receipt of the written notice therefore, the implementing agency shall cease disbursement of project funds and shall resume only upon the written advice of PCAARRD. In case of termination, DOST- PCAARRD shall notify the Project Leader at least forty-five (45) days before the date of termination so that he could accordingly notify the project staff at least a month before the date of project termination.

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VIII. Indemnification

Each party shall indemnify, hold free and harmless, and defend at its expense the other party/ies from and against all suits, claims, demands and liabilities of any nature or kind, arising out of acts or omissions of the former, in the performance of any activity in connection with the project, including those that may be initiated by its employees, workers, agents, subcontractors, or by other entity or persons against said party by reason of or in connection to the program/project..

IX. Amendment Provision

Any additional or amendments to the stipulations hereof shall be done through a supplementary agreement to be prepared by the party requiring such and shall be mutually consented by the parties. Notarization of such shall be taken care of by the party who prepared the amendments/additional provisions.

X. Repealing Clause

Both parties agree that this MOA contains the full agreement of the parties and supersedes all previous agreements either written or oral if there are any.

XI. Preferred Dispute Resolution (Government to Government)

Should any disagreement arise out of the application, interpretation or implementation of this Agreement, the parties shall endeavor to exercise best efforts to amicably negotiate their difference. In case of failure, the rules under Administrative Code of 1987 on dispute between government agencies shall apply.

XII. Effectivity and Termination

This Agreement shall take effect after the same is duly signed and notarized. It shall remain in force for until such time that the proponent/s have submitted all the requisite documents as stipulated in this agreement and cleared by the Funding Agency from all accountabilities.

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RAUL G. BRADECINA
President
ParSU

REYNALDO V. EBORA
Executive Director
PCAARRD

IN WITNESS WHEREOF, the parties hereto have hereunto set their hands, this _____ at _____.

PCAARRD
By:

REYNALDO V. EBORA
Executive Director

USeP
By:

LOURDES C. GENERALAO
President

ParSU
By:

RAUL G. BRADECINA
President

WITNESSES:

ERNESTO O. BROWN
Director, SERD-PCAARRD

ROBERTO S. DELUNA, JR.
Project Leader, USeP

NERISA N. PALADAN
Project Staff, ParSU

Certified Funds Available:

JAIVEE ANN M. TABADERO
Accountant II
OIC, FAD-Accounting Section, PCAARRD

ACKNOWLEDGMENT

Republic of the Philippines)
Municipality of Los Baños) S.S.

BEFORE ME, A NOTARY PUBLIC for and in Los Baños, Laguna, Philippines, on this _____, personally appeared:

NAME	GOVERNMENT ISSUED IDENTIFICATION	DATE/PLACE ISSUED
REYNALDO V. EBORA	Philippine Passport S0026509A	Oct. 6, 2022/ DFA Manila

known to me to be the same person who executed the foregoing instrument and they acknowledged to me that the same is his free and voluntary act and deed as well as that of the Entity he represents.

This instrument, consisting of eleven (11) pages, including this page whereon this Acknowledgement if written, signed by the parties together with their instrumental witnesses one each on every page thereof

TO THE TRUTH OF FOREGOING, witness now my hand and seal on the date and place first above written.

Doc No. _____
Page No. _____
Book No. _____
Series of 2023.

ACKNOWLEDGMENT

Republic of the Philippines)
Davao City) S.S.

BEFORE ME, A NOTARY PUBLIC for and in _____, Philippines, on this SEP 29 2023, personally appeared:

NAME	GOVERNMENT ISSUED IDENTIFICATION	DATE/PLACE ISSUED
LOURDES C. GENERALAO	UMID ID No. CRN-006-0085-6444-5	Davao City

known to me to be the same person who executed the foregoing instrument and they acknowledged to me that the same is her free and voluntary act and deed as well as that of the Entity he represents.

This instrument, consisting of eleven (11) pages, including this page whereon this Acknowledgement if written, signed by the parties together with their instrumental witnesses one each on every page thereof

TO THE TRUTH OF FOREGOING, witness now my hand and seal on the date and place first above written.

JAMIL ADRIAN KHALIL L. MATALAM
Notary Public
Commission Serial No. 2023-024-2024
Until December 31, 2024
Roll of Attorneys No. 61903
IBP No. 241422 dated December 4, 2022
PTR No. 7865309 dated December 21, 2022
TIN : 938-513-623

Doc No. 118
Page No. 25
Book No. II
Series of 2023.

ACKNOWLEDGMENT

Republic of the Philippines)
NAGA, CAMARINES SUR) S.S.

BEFORE ME, A NOTARY PUBLIC for and in NAGA, CAMARINES SUR, Philippines, on this OCT 11 2023, personally appeared:

NAME	GOVERNMENT ISSUED IDENTIFICATION	DATE/PLACE ISSUED
RAUL G. BRADECINA	Passport No. P7648090B	

known to me to be the same person who executed the foregoing instrument and they acknowledged to me that the same is his free and voluntary act and deed as well as that of the Entity he represents.

This instrument, consisting of eleven (11) pages, including this page whereon this Acknowledgement if written, signed by the parties together with their instrumental witnesses one each on every page thereof

TO THE TRUTH OF FOREGOING, witness now my hand and seal on the date and place first above written.

GIL P. PACAHARRA
NOTARY PUBLIC VALID UNTIL DEC. 31, 2024
PTR NO. 7437737 12/16/22 SAN JOSE, CAM. SUR
IBP NO. 250615 12/14/22 CAM. SUR CHAPTERS
ATTORNEY'S ROLL NO. 17631
MCLE V-0005097

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